**BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,**
**PRINCIPAL BENCH**

**NEW DELHI**

**Company Petition No. CAA 142/PB/2018**

with

**Company Application No.CA (CAA) 06/PB/2017**

**Judgment dated:** 08.10.2018

**Coram:**

**CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR,**

**HON'BLE PRESIDENT**

**&**

**MR. S.K. MOHAPATRA,**

**MEMBER (TECHNICAL)**

**In the matter of:**

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

**AND**

**IN THE MATTER OF SCHEME OF ARRANGEMENT**

**AMONGST**

**1. NIGHTINGALE FINANCE AND LEASING LIMITED**

Company registered under the Companies Act, 2013

Having Registered Office at:

1/2873, Loni Road,

Shahdara,

New Delhi-110032

..... Applicant Company No. 1 / Demerged Company

**2. MICRO MANAGEMENT LIMITED**

Company registered under the Companies Act, 2013

Having Registered Office at:

1/2873, Loni Road,

Shahdara,

New Delhi-110032

..... Applicant Company No. 2 / Transferor Company No. 1

**3. STARWOOD CONTRACTS PRIVATE LIMITED**

Company registered under the Companies Act, 1956

Having Registered Office at:

Office No. 8, 1st Floor,

DDA Shopping Complex No. 4,

CR Park, New Delhi-110019

... Applicant Company No. 3/ Transferor Company No. 2

**4. PRANAAM CONSULTANTS PRIVATE LIMITED**

Company registered under the Companies Act, 1956

Having Registered Office at:

Unit No. 5D, 5th Floor, Assets Area 4,

Delhi Aerocity Hospitality District,

Near IGI Airport

New Delhi-110037

... Applicant Company No. 4/ Transferor Company No. 3

**With**

**5. BESTECH INDIA PRIVATE LIMITED**

Having Registered Office at:
Unit No. 5D, 5th Floor, Assets Area 4,
Delhi Aerocity Hospitality District,
Near IGI Airport
New Delhi-110037

... Applicant Company No. 5/ Transferee Company

**For the Applicants:** Vipul Ganda, Advocate

**ORDER**

**M.M. KUMAR, PRESIDENT**

This is a second motion Petition which has come up before us for admission and for fixing a date of hearing of the main Company Petition as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including sectoral regulators if any. The prayer also is to fix date of hearing of the Petition and calling for the objections, if any, to the Scheme (hereinafter for brevity referred to as "SCHEME") between the Petitioner Companies.

2. From the records, it is seen that the First Motion application seeking direction for dispensing with convening the meeting of Shareholders and Creditors was filed before this Tribunal being CA (CAA) No. 06 (PB) 2017 under Sections 230-232 of the Companies Act, 2013. In the order dated 06.07.2018 the meetings of the Secured Creditors and Unsecured Creditors

of the Transferor Company No. 2 & Transferee Company were directed to be convened. In compliance with the directions issued by the Tribunal, meetings were duly held and to which effect the Chairman appointed by the Tribunal has also filed his report as detailed hereunder:

| **Meeting of** | **Chairman/Alternate Chairman/ Scrutinizer appointed by Court** | **Chairman's Report dated** |
|---|---|---|
| Secured Creditors of Applicant Company 3 | Sh. Sanjeev Puri, Senior Advocate,<br>Sh. Rohan Jaitely Advocate,<br>Sh. Amar Nath Garg, CA | 14.09.2018 |
| Unsecured Creditors of Applicant Company 3 | Sh. Sanjeev Puri, Senior Advocate,<br>Sh. Rohan Jaitely Advocate,<br>Sh. Amar Nath Garg, CA | 14.09.2018 |
| Secured Creditors of Applicant Company 5 | Sh. Sanjeev Puri, Senior Advocate,<br>Sh. Rohan Jaitely Advocate,<br>Sh. Amar Nath Garg, CA | 14.09.2018 |
| Unsecured Creditors of Applicant Company 5 | Sh. Sanjeev Puri, Senior Advocate,<br>Sh. Rohan Jaitely Advocate,<br>Sh. Amar Nath Garg, CA | 14.09.2018 |

The report of the Chairman shows that the meetings were duly convened and has approved the Scheme. Subsequently this petition on second motion has come up before us for fixing a date of hearing as well as for other

consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 and it is now hereby ordered as follows: -

(i) Notice of the hearing shall be published in the English Daily, "**Financial Express**" (Delhi edition) and Hindi Daily "**Jansatta**" (Delhi edition) not less than 10 days before the aforesaid date fixed for hearing i.e 05.12.2018.

(ii) In addition to the above public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Ministry of Corporate Affairs through Regional Director (Northern Region), (b) Ministry of Corporate Affairs ; Registrar of Companies, NCT of Delhi & Haryana, (c) the Income Tax Department, alongwith full details of assessing officer and PAN Card numbers of all the companies (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iii) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of

Section 230 of the Act along with a copy of the Petition and the Annexures who may have made representation and who desired to be heard in their representation atleast 15 days before the date fixed for hearing.

(iv) All the Petitioners shall atleast 7 days before the date of hearing of the Petition file an affidavit of service in relation to publication in newspapers as well as service of notices on the Authorities specified above including the Sectoral Regulators and to Objectors, if any.

(v) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vi) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or

before the date fixed for hearing by filing the certificate of Company's auditor.

(vii) The next date of hearing of the Petition shall be on 05.12.2018 for the consideration of the approval of the Scheme as contemplated between the Petitioner Companies.

Sd/-

**(M.M. KUMAR)** 8.10.2018

**PRESIDENT**

Sd/-

**(S.K. MOHAPATRA)**

**MEMBER (TECHNICAL)**

(Vidya)